LUNCH INTRODUCTIONS
PAUL “CHIP” JAENICHEN
ACTING MARITIME ADMINISTRATOR

NATIONAL MARITIME STRATEGY SYMPOSIUM #1
GROWING THE US-FLAG FLEET ENGAGED IN INTERNATIONAL TRADE

JANUARY 15, 2014

U.S. DEPARTMENT OF TRANSPORTATION (DOT)
WEST ATRIUM – GROUND FLOOR
WASHINGTON, DC

BEFORE WE WELCOME OUR NEXT SPEAKER, I HAVE A BIT OF NEWS.

UNFORTUNATELY, SOME LAST MINUTE CHANGES TO THE HOUSE JUDICIARY COMMITTEE SCHEDULE ARE PREVENTING CONGRESSMAN RANDY FORBES FROM JOINING US TODAY.

HE SENDS HIS APOLOGIES AND BEST WISHES FOR OUR EFFORT.

ALSO, ALTHOUGH WE'D INITIALLY SCHEDULED MR FOTIS KARAMITSOS ***(FOE-TISS CAR-AH-MEAT-ZOHS)*****, TO SPEAK TODAY, AN URGENT FAMILY ISSUE REQUIRES THAT HE BE ELSEWHERE RIGHT NOW.**

HOWEVER, WE HAVE BEEN VERY FORTUNATE TO HAVE TWO KNOWLEDGEABLE SPEAKERS COMMIT ON SHORT NOTICE . . .

FIRST, WE HAVE WITH US A MAN WITH A WELL-ROUNDED AND DEEP KNOWLEDGE OF U.S. TRANSPORTATION POLICY.

HE SPENT NINE YEARS ON THE HILL – AS A STAFF MEMBER FOR THE SENATE COMMITTEE ON COMMERCE, SCIENCE AND TRANSPORTATION . . . AND THE HOUSE COMMITTEE ON TRANSPORTATION INFRASTRUCTURE.

AND NOW HE'S A MAJOR ASSET TO US HERE AT THE D.O.T.

HE CURRENTLY SERVES IN THE OFFICE OF THE ASSISTANT SECRETARY FOR POLICY HERE AT THE DEPARTMENT, WHERE HE IS RESPONSIBLE FOR COORDINATING THE DEPARTMENT'S NATIONAL FREIGHT ACTIVITIES . . . INCLUDING MANAGING THE NATIONAL FREIGHT ADVISORY COMMITTEE.

HE ALSO OVERSEES THE DEVELOPMENT OF THE DEPARTMENT'S UPCOMING NATIONAL FREIGHT STRATEGIC PLAN AND THE IMPLEMENTATION OF THE NATIONAL FREIGHT POLICY.

PLEASE HELP ME WELCOME JOHN DRAKE!

. . .

. . .

. . .

THANK YOU, JOHN . . .

IT WAS OUR INTENTION TO WIDEN HORIZONS WITH THIS SYMPOSIUM . . . AND GET MARITIME PLAYERS TO TAKE A LOOK AT THE BIGGER PICTURE IN THIS INDUSTRY.

THAT'S WHY IT IS SUCH AN HONOR TO INTRODUCE OUR NEXT SPEAKER . . . A PERSON WHO CAN SHINE

SOME LIGHT ON MARITIME PRACTICES AND DEVELOPMENTS ACROSS THE ATLANTIC.

HE HAS BEEN WITH THE EUROPEAN COMMISSION SINCE 2003, PLAYING A LEADING ROLE IN NUMEROUS RESEARCH, LOGISTICS AND ANALYSIS EFFORTS FOCUSING ON EUROPEAN INLAND WATERWAY TRANSPORT AND MARITIME SHIPPING…

AMONG THESE, HE WAS A CENTRAL CONTRIBUTOR TO THE EUROPEAN COMMISSION'S 2011 WHITE PAPER ON TRANSPORT, <u>A POLICY STRATEGY TO SERVE THE E.U. THROUGH 2021 . . .</u>

PLEASE JOIN ME IN GIVING A WARM WELCOME TO TRANSPORT COUNSELOR FOR THE EUROPEAN UNION DELEGATION TO THE UNITED STATES, DR FELIX LEINENMAN *(LINE-E-MAHN).*

MESSAGE NO:	7340114	MESSAGE DATE:	12/05/1996
MESSAGE STATUS:	Active	CATEGORY:	Countervailing
TYPE:	LIQ-Liquidation	PUBLIC ☑	NON-PUBLIC ☐
SUB-TYPE:			
FR CITE:	FR	FR CITE DATE:	
REFERENCE MESSAGE # (s):			
CASE #(s):	C-533-063		
EFFECTIVE DATE:		COURT CASE #:	
PERIOD OF REVIEW:		TO	
PERIOD COVERED:	01/01/1995	TO	12/31/1995

Notice of Lifting of Suspension Date:

TO: { Directors Of Field Operations, Port Directors }

FROM: { Director AD/CVD & Revenue Policy & Programs }

RE: AUTOMATIC LIQUIDATION FOR CERTAIN IRON-METAL CASTINGS FROM INDIA (C-533-063) FOR THE PERIOD 1/1/95-12/31/95

MESSAGE NO: 7340114 DATE: 12 05 1996
CATEGORY: CVD TYPE: LIQ
REFERENCE: REFERENCE DATE:
CASES: C - 533 - 063 - -
- - - -
- - - -

PERIOD COVERED: 01 01 1995 TO 12 31 1995

LIQ SUSPENSION DATE:

TO: CMC DIRECTORS,
PORT DIRECTORS

FROM: DIRECTOR, IMPORT OPERATIONS

RE: AUTOMATIC LIQUIDATION FOR CERTAIN IRON-METAL CASTINGS FROM INDIA (C-533-063) FOR THE PERIOD 1/1/95-12/31/95

1. THE DEPARTMENT OF COMMERCE DID NOT RECEIVE A REQUEST FOR AN ADMINISTRATIVE REVIEW OF THE COUNTERVAILING DUTY ORDERS ON CERTAIN IRON-METAL CASTINGS FROM INDIA (C-533-063) FOR THE PERIOD 1/1/95 - 12/31/95.

2. THE MERCHANDISE COVERED BY THESE INSTRUCTIONS IS CERTAIN IRON-METAL CASTINGS FROM INDIA (C-533-063). THESE PRODUCTS INCLUDE INDIAN MANHOLE COVERS AND FRAMES, CLEAN-OUT COVERS AND FRAMES, AND CATCH BASIN GRATES AND FRAMES. THESE

ARTICLES ARE COMMONLY CALLED MUNICIPAL OR PUBLIC WORKS CASTINGS AND ARE USED FOR ACCESS OR DRAINAGE FOR PUBLIC UTILITY, WATER, AND SANITARY SYSTEMS. DURING THE REVIEW PERIOD, SUCH MERCHANDISE WAS CLASSIFIABLE UNDER THE HARMONIZED TARIFF SCHEDULE (HTS) ITEM NUMBERS 7325.10.0010 AND 7325.10.0050.

3. THEREFORE, IN ACCORDANCE WITH SECTION 355.22(G) OF THE COMMERCE REGULATIONS, YOU ARE TO ASSESS COUNTERVAILING DUTIES AT RATES EQUAL TO THE CASH DEPOSIT OF ESTIMATED COUNTERVAILING DUTIES REQUIRED AT THE TIME OF ENTRY SUMMARY ON THE SPECIFIED SUBJECT MERCHANDISE EXPORTED ON OR AFTER DECEMBER 1, 1995 AND ON OR BEFORE DECEMBER 31, 1995.

4. THE RATES OF ESTIMATED COUNTERVAILING DUTIES WHICH WERE REQUIRED TO BE DEPOSITED ARE:

CERTAIN IRON-METAL
CASTINGS
FROM INDIA

MANUFACTURERS	CASE NUMBER	PERIOD	RATE
ALL FIRMS	C-533-063	1/1/95-8/28/95	2.48%
		8/29/95-12/31/95	5.12%
R.B. AGARWALLA	C-533-063-001	1/1/95-8/28/95	2.48%
		8/29/95-12/31/95	5.12%
CARNATION	C-533-063-002	1/1/95-8/28/95	16.10%
		8/29/95-12/31/95	5.12%
CRESCENT	C-533-063-003	1/1/95-8/28/95	2.48%
		8/29/95-12/31/95	5.12%
GOVIND	C-533-063-004	1/1/95-8/28/95	20.21%
		8/29/95-12/31/95	5.12%
KAJARIA	C-533-063-005	1/1/95-8/28/95	2.48%

8/29/95-12/31/95 16.14%

RSI C-533-063-006 1/1/95-8/28/95 2.48%
8/29/95-12/31/95 5.12%

SERAMPORE C-533-063-007 1/1/95-8/28/95 2.48%
8/29/95-12/31/95 5.12%

KEJRIWAL C-533-063-008 1/1/95-8/28/95 2.48%
8/29/95-12/31/95 5.12%

SELECT C-533-063-009 1/1/95-8/28/95 2.48%
8/29/95-12/31/95 5.12%

UMA C-533-063-010 1/1/95-8/28/95 16.22%
8/29/95-12/31/95 5.12%

COMMEX C-533-063-011 1/1/95-8/28/95 2.48%
8/29/95-12/31/95 5.12%

SUPERCASTINGS C-533-063-012 1/1/95-8/28/95 2.48%
8/29/95-12/31/95 41.75%

TIRUPATI C-533-063-013 1/1/95-8/28/95 20.21%
INTERNATIONAL 8/29/95-12/31/95 5.12%

RAGHUNATH PRASA C-533-063-014 1/1/95-8/28/95 20.21%
PHOOLCHAND LTD. 8/29/95-12/31/95 5.12%

DINESH BROTHERS, C-533-063-015 1/1/95-8/28/95 2.48%
PVT. LTD. 8/29/95-12/31/95 ZERO

5. THE ASSESSMENT OF COUNTERVAILING DUTIES BY THE CUSTOMS SERVICE ON SHIPMENTS OR ENTRY SUMMARIES OF THIS MERCHANDISE IS SUBJECT TO THE PROVISIONS OF SECTION 778 OF THE TARIFF ACT OF 1930. SECTION 778 REQUIRES THAT CUSTOMS PAY INTEREST ON OVERPAYMENTS, OR ASSESS INTEREST ON UNDERPAYMENTS, OF THE REQUIRED AMOUNTS DEPOSITED AS ESTIMATED COUNTERVAILING

DUTIES. THE INTEREST PROVISIONS ARE NOT APPLICABLE TO CASH OR BONDS POSTED AS ESTIMATED COUNTERVAILING DUTIES BEFORE THE DATE OF PUBLICATION OF THE COUNTERVAILING DUTY ORDER. INTEREST SHALL BE CALCULATED FROM THE DATE OF PAYMENT OF ESTIMATED COUNTERVAILING DUTIES THROUGH THE DATE OF LIQUIDATION. THE RATE AT WHICH SUCH INTEREST IS PAYABLE IS THE RATE IN EFFECT UNDER SECTION 6621 OF THE INTERNAL REVENUE CODE OF 1954 FOR SUCH PERIOD.

6. THE SUSPENSION OF LIQUIDATION ORDERED FOR THIS MERCHANDISE EXPORTED ON OR BEFORE 12/31/95 IS LIFTED. SUSPENSION OF LIQUIDATION FOR ALL ENTRY SUMMARIES OF THIS MERCHANDISE EXPORTED AFTER 12/31/95 WILL CONTINUE.

7. IF THERE ARE ANY QUESTIONS REGARDING THIS MATTER BY CUSTOMS OFFICERS, PLEASE CONTACT VIA E-MAIL, THROUGH THE APPROPRIATE SUPERVISORY CHANNELS, IMPORT OPERATIONS, ANTIDUMPING/COUNTERVAILING DUTY, USING ATTRIBUTE 'HQ OAB'. THE IMPORTING PUBLIC AND OTHER INTERESTED PARTIES SHOULD CONTACT THE OFFICE OF AD/CVD ENFORCEMENT VI, IMPORT ADMINISTRATION, U.S. DEPARTMENT OF COMMERCE, (202) 482-2786.

8. THERE ARE NO RESTRICTIONS ON THE RELEASE OF THIS INFORMATION.

WILLIAM D. SLYNE

Company Details

*Party Indicator Value:

I = Importer, M = Manufacturer, E = Exporter, S = Sold To Party

42.062 Repealed, 1982.

Catchline at repeal: Definition for KRS 42.064 and 42.066.

History: Repealed 1982 Ky. Acts ch. 393, sec. 51, effective July 15, 1982. -- Created 1962 Ky. Acts ch. 106, Art. V, sec. 5

APPROVED

WASHINGTON STATE INVESTMENT BOARD
Public Markets Committee Meeting Minutes
February 3, 2009

The Public Markets Committee met in open public session at 1:00 p.m. at the Washington State Investment Board (WSIB) office at 2100 Evergreen Park Drive Southwest, Olympia, Washington.

Members Present:	Mike Ragan, Chair George Masten David Nierenberg (via teleconference) Mason Petit Judy Schurke
Members Absent:	Charlie Kaminski John Magnuson Robert Nakahara Representative Sharon Tomiko Santos
Others Present:	Joe Dear, Executive Director Gary Bruebaker, Chief Investment Officer Philip Paroian, Senior Investment Officer – Public Equity David Thatcher, Investment Officer – Public Equity John Lynch, Contracts Manager Kristi Bromley, Administrative Assistant – Investments Steve Dietrich, Assistant Attorney General Paul Brakke, State Street Global Advisors Lynn Blake, State Street Global Advisors Tom Motley, State Street Global Advisors Neil Tremblay, State Street Global Advisors

[Names of other individuals attending the meeting are not included in the minutes but are listed in the permanent record.]

The meeting convened at 1:00 p.m. with Chair Ragan identifying members present.

REVIEW AND APPROVAL OF MINUTES – DECEMBER 2, 2008

> **Mr. Masten moved to adopt the December 2, 2008, Public Markets Committee minutes. Mr. Petit seconded, and the motion carried unanimously.**

INDEX-RELATED PRODUCTS MANAGER PRESENTATION

Mr. Thatcher introduced himself and reviewed the process and results of the index-related products search. The current non-U.S. index contract with State Street Global Advisors (SSgA) expires March 31, 2009. Many of the WSIB programs use passive indexing, including defined benefit and defined contribution programs as well as qualified and nonqualified portfolios. Indexing is used to gain broad based equity exposure at the lowest possible cost. Callan Associates assisted WSIB staff with this search. The search process was similar to the one conducted for U.S. indexes in 2007 to provide the WSIB with access to all index-related products offered by the firm. The primary focus will be non-U.S. equity products. Because of its size, the WSIB requires significant capacity from any index-related manager.

Only two investment firms met the minimum requirements of the search: SSgA and Barclays Global Investors (BGI). Both firms exhibited strengths and advantages and scored well during the evaluation; neither had major weaknesses. While both firms are very competent managers of index products, three main factors contributed to the staff's recommendation of SSgA over BGI: (1) Incumbency—as the incumbent, SSgA has served the WSIB in this role for the past 13 years. Securities lending is imbedded into the index process and, because of the liquidity and volatility challenges in the current market, changing from one index provider and securities lending pool to another may cause significant turmoil and cost to the defined benefit portfolio as well as Plan 3 and DCP participants. (2) Diversification—the WSIB benefits from having two separate and different index providers. This also limits some operational and investment risks by not concentrating all passive mandates with one firm. (3) Performance—SSgA's performance record has been good and they have added between 20 and 40 basis points annualized over various time periods. There is no compelling reason to transition from SSgA and staff's recommendation is to award the new contract to them as the incumbent non-U.S. index manager.

Mr. Thatcher addressed the recent media attention that SSgA's parent company, State Street Corporation (SSC), has received regarding their recent fourth quarter 2008 announcement of a 71 percent drop in profits and discussed steps that have been taken to assure that the WSIB's holdings with SSgA are not affected by any potential credit rating downgrade of the parent company. Mr. Thatcher also reviewed the differences between investing in a commingled fund versus separate account. Investing in commingled funds for non-U.S. equity is preferred as they offer an easy platform for large-scale investments into many international markets, low cost access and economies of scale, low cost trading opportunities, and lower management fees and administration costs. He also discussed the additional characteristics of commingled funds wherein the manager votes the proxies and exercises any class action litigation rights as well as the role of securities lending in the investment management of index funds.

Discussion ensued regarding benchmarks, securities lending, and proxy voting. The Committee also discussed further due diligence to ensure that losses at a company's parent organization would not prevent WSIB from having access to our funds and or impair the safety of the WSIB's assets under all foreseeable circumstances.

Mr. Brakke, Ms. Blake, Mr. Tremblay, and Mr. Motley introduced themselves. Mr. Tremblay provided an organizational overview and discussed recent market challenges and the effect on SSC. SSgA is one of the three core businesses of SSC. Mr. Tremblay reviewed assets under management and steps SSC and SSgA have taken in response to the current market environment. There has been no personnel turnover associated with any of the accounts SSgA manages on the WSIB's behalf and the parent company continues to reinvest resources in SSgA in order to better serve client needs.

Mr. Brakke reviewed the global structured products group and strategies. Indexing is a core business for SSgA and a significant part of their total revenue. He reviewed the team, organizational structure, strategies, and assets under management by strategy.
Ms. Blake reviewed SSgA's non-U.S. index experience including separate country funds, diverse client base, results, and assets under management. She provided an overview of various SSgA non-U.S. index strategies including index structure and methodology as well as portfolio construction and performance.

Mr. Motley discussed securities lending and provided an overview of SSgA's cash management by security type and asset backed securities allocation. He reviewed SSgA's cash collateral investment management objectives, process, and philosophy and discussed current challenges and opportunities. Mr. Motley reviewed the summary characteristics of SSgA's securities lending funds.

Discussion ensued regarding the uncertainty of recent market events, deterioration of the global economy, U.S. unemployment expectations and tie in with asset backed securities, depth of recession, and unintended consequences from government intervention.

> **Mr. Masten moved that the Public Markets Committee recommend the Board approve the selection of State Street Global Advisors as an index-related products investment manager for the WSIB, with a focus on non-U.S. index-related products, subject to final negotiations of terms, conditions, and fees. Mr. Petit seconded the motion.**

The Committee and staff discussed appropriate safeguards surrounding protection of fund assets. It was agreed that as part of the "final negotiations of terms," WSIB staff from investments and contracts would work with legal counsel from the Attorney General's office and outside counsel if necessary to ensure that the contract contains appropriate wording to protect the fund's assets.

> **The motion carried unanimously.**

[The Committee recessed at 2:22 p.m. and reconvened at 2:32 p.m.]

Chair Ragan announced that the Committee would go into executive session to discuss financial and commercial information relating to an investment since public knowledge regarding the discussion would result in loss to the funds managed by the WSIB or would result in private loss to the providers of the information. The executive session was expected to last approximately 30 minutes at which time the Committee would reconvene in open public session.

ENHANCED INDEXING PROGRAM REVIEW

[The committee entered executive session at 2:32 p.m.]

[Mr. Nierenberg was no longer in attendance at 3:00 p.m.]

[The committee reconvened in open public session at 3:34 p.m.]

> **Mr. Petit moved that the Public Markets Committee recommend the Board approve the specific actions related to the U.S. equity enhanced index mandate within the Public Equity program discussed in executive session. Mr. Masten seconded, and the motion carried unanimously.**
>
> **Ms. Schurke moved that the Public Markets Committee recommend the Board approve the specific actions recommended by the staff related to the non-U.S. equity enhanced index mandate within the Public Equity program discussed in executive session. Chair Ragan seconded, and the motion failed with Mr. Masten and Mr. Petit voting no.**
>
> **Mr. Petit moved that the Public Markets Committee recommend the Board direct staff to execute the transition plan as recommended by the staff in executive session. Mr. Masten seconded, and the motion carried unanimously.**
>
> **Mr. Petit moved that the Public Markets Committee recommend the Board direct staff to begin a competitive process to identify enhanced index managers for the Committee's and Board's consideration. Ms. Schurke seconded and the motion carried with Mr. Masten voting no.**

OTHER ITEMS

There was no further business to come before the Public Markets Committee and the meeting adjourned at 3:38 p.m.